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Workforce Security and Information Access

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1 Workforce Member Security

1.1 HIPAA Security Rule Language

"Implement policies and procedures to ensure that all members of its workforce have appropriate access to electronic PHI, as provided under paragraph (a)(4) [information access management] of this section, and to prevent those workforce members who do not have access under paragraph (a)(4) of this section from obtaining access to electronic PHI." 45 CFR § 164.308(3)(1).

"Implement procedures for the authorization and/or supervision of workforce members who work with electronic protected health information or in locations where it might be accessed.

Implement procedures to determine that the access of a workforce member to electronic protected health information is appropriate." §164.308(a)(3)(ii)(A)-(B).

1.2 Purpose Statement

To protect the confidentiality, integrity, and availability of ePHI, PeriGen will implement reasonable and appropriate safeguards to prevent unauthorized access to ePHI while ensuring that properly authorized Workforce Members' access to ePHI is permitted and where necessary, terminated.

1.3 Policy/Procedure

1.3.1 Workforce clearance

1. Security privileges will be identified and defined for each Workforce Member who is granted access to ePHI or ePHI Systems.
2. Based on the level of privileges to be granted to candidates for employment, or other arrangement, Human Resources personnel will perform appropriate and reasonable verifications checks on the candidate.
3. Verification checks may include, but are not limited to:
   a. Character references;
   b. Confirmation of claimed academic and professional qualifications; or
   c. Criminal background checks.
4. Upon accepting an offer of employment or other arrangement, each Workforce Member who will have access to ePHI will sign the Workforce Member HIPAA Compliance and Confidentiality Statement as required pursuant to the PeriGen Workforce Member Compliance Policy.

1.3.2 Supervision of Workforce Members

1. The Privacy & Security Officer will take reasonable and appropriate steps to ensure that Workforce Members who have the ability to access ePHI or those who work in areas where ePHI might be accessed will be properly supervised. PeriGen will ensure that Workforce Members only access such ePHI that they are authorized to access pursuant to their job responsibilities.

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2. PeriGen will ensure that appropriate sanctions are taken against Workforce Members who improperly access ePHI, or who inappropriately grant access to ePHI to other Workforce Members. Sanctions will be instituted in accordance with the PeriGen Workforce Member Discipline Policy.

1.3.3 Access to ePHI

PeriGen will authorize, establish and modify, as appropriate, each Workforce Member's access to ePHI in accordance with the PeriGen Information Access Management Policy.

1.3.4 Termination of Access to ePHI

PeriGen will terminate a Workforce Member's access to ePHI, either in the event of a Workforce Member's resignation or a Workforce Member's termination by PeriGen, in accordance with the PeriGen Termination Procedures Policy.

1.4 Administrative details

Responsibility: Privacy & Security Officer; Human Resource Manager

Definitions: Workforce Member; ePHI System; ePHI

Regulatory Reference:

- 45 C.F.R. §164.308(a)(3)(i), Workforce Security [Standard; Required]
- 45 C.F.R. §164.308(a)(3)(ii)(A), Authorization and/or Supervision [Implementation Specification; Addressable]
- 45 C.F.R. §164.308(a)(3)(ii)(B), Workforce Clearance Procedure [Implementation Specification; Addressable]

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2 Information Access Management

2.1 HIPAA Security Rule Language

Implement policies and procedures for authorizing access to electronic PHI that are consistent with the applicable requirements of [the Privacy Rule]" 45 CFR § 164.308(a)(4)(i).

"Implement policies and procedures for granting access to electronic protected health information, for example, through access to a workstation, transaction, program, process or other mechanism.

Implement policies and procedures that, based on the covered entity's…access authorization policies, establish, document, review, and modify a user's right of access to a workstation, transaction, program, or process." 45 CFR § 164.308(a)(4)(ii)(B)-(C).

2.2 Purpose Statement

PeriGen strives to protect the confidentiality, integrity, and availability of ePHI by taking reasonable steps to appropriately manage access to ePHI. Safeguarding access to ePHI contained within ePHI Systems is integral to PeriGen's compliance efforts under the HIPAA Security Regulations. This policy reflects PeriGen's commitment to comply with such Regulations by taking reasonable and appropriate steps to manage access to ePHI.

2.3 Policy/Procedure

2.3.1 Establishing Access to ePHI

1. PeriGen will ensure that only authorized Workforce Members will have access to ePHI.
2. PeriGen will document the various levels of access to ePHI contained within its ePHI Systems that each Workforce Member will have based upon the job function requirements of each position.
3. Workforce Members will not be granted access to ePHI until the Workforce Member has been properly cleared in accordance with the PeriGen Workforce Member Security Policy or the Business Associate Agreement Policy, respectively. Further, Workforce Members must not attempt to access ePHI until they are properly cleared.
4. Once a Workforce Member has completed privacy and security training, the Director, Technical Client Services and Remote Operations will assign the Workforce Member a unique username and password to activate access to ePHI.

2.3.2 Review of Workforce Members' Access to ePHI

1. PeriGen will review access privileges to ePHI annually.
2. PeriGen may modify, if necessary, access privileges to ePHI.

2.3.3 Modification of Workforce Members' Access to ePHI

1. When a Workforce Member's access to ePHI must be modified, either because of a change in job function or termination, PeriGen will document such modifications.
2. Such documentation may include:
   a. The date and time of the modification;

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b. The identification of the Workforce Member whose access is being modified;
c. A description of the Workforce Member's modified access rights; and
d. The reason for the modification of the Workforce Member's access rights.

2.4 Administrative details

Responsibility: Privacy & Security Officer; Director of Quality and Regulatory; Human Resources Office; Director, Technical Client Services and Remote Operations

Definitions: Workforce Member

Regulatory Reference:

- 45 C.F.R. §164.308(a)(4)(i), Information Access Management [Standard; Required]
- 45 C.F.R. §164.308(a)(4)(ii)(B), Access Authorization [Implementation Specification; Addressable]
- 45 C.F.R. §164.308(a)(4)(ii)(C), Access Establishment and Modification [Implementation Specification; Addressable]

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3 Termination Procedures

3.1 HIPAA Security Rule Language

Implement procedures for terminating access to electronic PHI when the employment of a workforce member ends or as required by determinations as specified in paragraph (a)(3)(ii)(B [workforce clearance] of this section. 45 CFR §164.308(a)(3)(ii)(C).

3.2 Purpose Statement

When a Workforce Member's employment or other arrangement with PeriGen ends or the Workforce Member's access to ePHI is no longer appropriate, PeriGen will terminate the Workforce Member's access to ePHI.

3.3 Policy/Procedure

3.3.1 Termination Procedures Upon a Workforce Member's Resignation

1. When a Workforce Member provides notice of his or her intention to end his/her employment or other arrangement with PeriGen, the Human Resources Office will give reasonable notice to the Director of Quality and Regulatory as well as the IT Manager, so that the departing Workforce Member's access to the applicable ePHI System can be terminated when he or she ends employment or his or her other arrangement.

3.3.2 Termination Procedures Upon a Workforce Member's Termination by PeriGen

1. When Workforce Members are terminated, PeriGen will remove or disable the Workforce Member's access privileges to the applicable ePHI System(s). Where appropriate, this may be done before the Workforce Member is notified of his or her termination.
2. Such ePHI System access privileges include, but are not limited to:
    a. Workstations and server access;
    b. Data access, particularly access to data contained within the applicable ePHI System(s);
    c. Access to any network that PeriGen uses;
    d. Email accounts; and/or
    e. Inclusion on group email lists.

3.3.3 General Resignation and Termination Procedures

1. PeriGen will terminate, as appropriate, a departing or terminated Workforce Member's physical access to areas where ePHI is located within PeriGen's facilities.
2. PeriGen will collect, and document the collection of, equipment and property that contains ePHI, which were used by the terminated or departing Workforce Member.
    a. Such documentation will include:
        i. The Workforce Member's name;
        ii. The date and time the equipment and property were returned; and
        iii. The identification of the returned property and equipment.
    b. PeriGen will securely maintain such documentation.

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3. Equipment that may contain, allow, or enable the Workforce Member to access ePHI, and which must be returned upon the Workforce Member's termination or departure, include, but is not limited to: a. Portable computers;
   b. Personal Digital Assistants (PDAs);
   c. Name tags or name identification badges;
   d. Security tokens;
   e. Facility access cards; and or/
   f. Building, desk, or office keys.

In addition to these steps, a checklist for termination procedures will be used by each PeriGen facility, addressing these requirements and other aspects as appropriate to that facility's working environment. A copy of this checklist will be placed in the Workforce Member's file to acknowledge completion of the termination checklist.

3.4 Administrative details

Responsibility: Privacy & Security Officer; Director of Quality and Regulatory; Human Resources Office

Definitions: Workforce Member; ePHI; ePHI System

Regulatory Reference:

- 45 C.F.R. §164.308(a)(3)(ii)(C), Termination Procedures [Implementation Specification; Addressable]

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